

		Rather, he testifies that he believed that he filed his answer on 2/10/23 and thereafter took no further action as to this lawsuit for over a year and a half. (Nisson Decl., ¶¶7, 8.) The Docket does show that he tried to electronically file an answer on 2/10/23 using LegalConnect. Unfortunately, default had already been entered preventing the filing of the answer. But the Clerk gave notice of the rejection, which specifically indicated that “Answering party has already been defaulted.” (ROA 60). This Motion was not filed until 8/7/24. (ROA 113). Defendant testifies that he “did not learn of the default entered on or about 02/06/2023 until July 9, 2024 when I was informed of the default/continued trial date by Counsel for Co-Defendants Jesse J. Thaler, Esq.” (Nisson Decl., ¶9). First, Defendant appears to argue that the “judgment” is void pursuant to CCP § 473(d). He argues that the Prayer for Relief in the FAC does not give him notice of any amounts. But, there is no judgment entered against him. Defendant has not cited any law for the proposition that the default is “void” for these reasons. The Court will hear argument on this issue. Second, Defendant argues mistake, inadvertence, surprise, or excusable neglect pursuant to CCP § 473(d). A motion for discretionary relief must be filed within 6 months after the clerk's entry of default. The motion is ineffective if filed thereafter, even if it is within 6 months after entry of the default <i>judgment</i> (these are separate procedures). (D.R.S. Trading Co., Inc. v. Barnes (2009) 180 CA4th 815, 820—limitations on motions to reconsider under § 1008 not applicable to motions for relief from default judgment for “mistake, inadvertence, surprise or excusable neglect”.) The Court cannot grant the Motion pursuant to CCP §473(b). The Court will hear from Defendant before issuing a final ruling. This Motion is not opposed. Defendant can meet and confer with Plaintiff’s Counsel to see if a resolution can be reached by stipulation.
4	2024-01403640	1) Demurrer to Complaint 2) Motion to Strike Portions of Complaint

	Feuer v. City of Newport Beach	3) Case Management Conference The Court Will Hear Argument
5	2023-01299440 Hulsey v. Trofimenko MD	1) Motion to Compel Deposition (Oral or Written) 2) Motion to Compel Production 3) Motion to Quash Subpoena 4) Motion to Quash Subpoena NO TENTATIVE WILL ISSUE THE COURT WILL HEAR ARGUMENT
7	2021-01225368 Koustik v. Christiansen	1) Motion to Compel Further Responses to Form Interrogatories 2) Motion to Compel Further Responses to Form Interrogatories 3) Motion to Compel Further Responses to Form Interrogatories Defendant Holly Christiansen’s motions to compel further responses to her form interrogatories, set three, from Plaintiffs/Cross-Defendants Peggy Koustik, Harry Koustik and Bethlehem No Fault Services, Inc. are denied. Defendant Court previously heard substantively identical motions on 11/18/24. The Court denies the prior motions because the separate statements did not comply with CRC, Rule 3.1345(c), which requires Defendant to provide to the court “all the information necessary to understand each discovery request and all the responses to it that are at issue... so that no person is required to review any other document in order to determine the full request and the full response.” (ROA 286). Subd. (c)(4) states that the separate statement shall include, “[i]f necessary, the text of all definitions, instructions, and other matters required to understand each discovery request and the responses to it,” and (c)(5) states that “[i]f the response to a particular discovery request is dependent on the response given to another discovery request, or if the reasons a further response to a particular discovery request is deemed necessary are based on the response to some other discovery request, the other request and the response to it must be set forth.” (ROA 286).